

DEPARTMENT OF THE NAVY
NAVSUP WSS
700 ROBBINS AVENUE PHILADELPHIA PA 19111-5098

Justification for Other Than Full & Open Competition

1. Contracting Activity

Contracting Activity		NAVSUP WSS - Philadelphia			Type	A1
Folder #		N0038323PR0R425		PD #	N0038323PR0R425	
Item Manager	Brieva, Kelly	Work Function	Planner	Phone		Code N52213KB
Technician	Nelson, Jonathan	Work Function	Equipment Specialist	Phone		Code N98152.56
Buyer	Brown, Leah	Work Function	Contract Specialist	Phone		Code N731.37

2. Description of the Action Being Approved

Description	Negotiation and award of a contract through other than full and open competition.
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3. Description of Supplies/Services

This J&A covers the acquisition of the following

☐ Spares ☒ Repair/Overhaul ☐ Modification ☐ Management ☐ Piece Parts ☐ Data Report

Nomenclature	FIRE CONTROL SUBSYSTEM,HELICO	Quantity	
NSN	1270-015255683	Cage Code	
P/N	40160003-01	Unit Price	
Option	N	Option %	
		Days	

Estimated Value

Ship To

Period of Performance: Expected Final Delivery Date

4. Statutory Authority Permitting Other Than Full & Open Competition

This J&A is based upon the authority of 10 USC 3204(A) (1), only one or a limited number of responsible sources will satisfy agency requirements, as implemented by FAR 6.302-1

5. Rationale Justifying Use of Cited Authority

A/RMC 3

Acquire, for the second or subsequent time, directly from the actual manufacturer.

A/RMSC C

This part requires engineering source approval by the design control activity in order to maintain the quality of the part. Existing unique design capability, engineering skills, and manufacturing/repair knowledge by the qualified source(s) require acquisition/repair of the part from the approved source(s). The approved source(s) retain data rights, manufacturing/repair knowledge, or technical data that are not economically available to the Government, and the data or knowledge is essential to maintaining the quality of the part. An alternate source must qualify in accordance with the design control activity's procedures, as approved by the cognizant Government engineering activity. The qualification procedures must be approved by the Government engineering activity having jurisdiction over the part in the intended application. If one source is approved, A/RMCs 3, 4, or 5 are valid. If at least two sources are approved or if data is adequate for an alternate source to qualify in accordance with the design control activity's procedures, A/RMCs 1 or 2 are valid.

This acquisition will be solicited to

KOLLSMAN INC. CAGE 89944 Per JDRS/ASE, this item has been deemed a Critical Application Item (CAI), thus limiting qualified sources. The acquisition/repair of the item listed above will be solicited to KOLLSMAN INC. CAGE 89944 because they are currently the only capable sources with the technical data required to repair, test and certify this item prior to unit delivery and are the only approved repair sources identified in JDRS/ASE. All alternate sources must qualify IAW the DCA's procedures, as approved by NAVAIR/NAVSUP WSS Source Development Department prior to contract award. The Navy does not currently have in its possession any manufacturing data, supporting test equipment, and associated specifications, or drawings, only part listings loaded in JEDMICS. Since the Navy does not own sufficient information such as any, specifications, test equipment/procedures, and drawings, a full and open competitive solicitation cannot be supported. NAVSUP-WSS must repair the items through KOLLSMAN INC. CAGE 89944 at this time.

6. Description of Efforts Made To Solicit Offers From as Many Offerors as Practicable

15 MAR 2019 Class Waiver of the Requirement to Post a Request for Information or Sources Sought Notice applies to this requirement

The proposed contract action was synopsized on the government-wide point of entry on

05/24/2023

and as a result

Market research was conducted in accordance with far part 10. The results of the market research conducted (or the reason(s) market research was not conducted) are as follows

The latest configuration has been checked and all records (ITIMP, JDRS/ASE, etc.) have been properly aligned, identified, and documented. This item has been deemed a Critical Application Item (CAI), thus limiting qualified sources. KOLLSMAN INC. CAGE 89944 is the only approved source at this time. The data necessary to repair these items from sources other than KOLLSMAN INC. CAGE 89944 is not physically available and is uneconomical to obtain at this time. The available technical data is insufficient for the development of new sources. Source Development Department files indicate no Source Approval Request (SAR) has been received from any party interested in becoming an approved source. Kollsmen (89944) is the only approved sources at this time.

7. Determination of Fair And Reasonable Cost

The contracting officer determines that the anticipated cost to the Government of the supplies covered by this J&A will be fair and reasonable.

8. Actions to Remove Barriers to Future Competition

For reasons set forth in Paragraph (5 & 6), NAVSUP WSS has no plans at this time to compete future contracts for the subject item covered by this document. If another potential manufacturing source emerges, NAVSUP WSS will assess whether competition for future requirements is feasible. Also, future requirements will be advertised on the government-wide point of entry.

Previous J&A

selected="selected" No Previous J&A - See reasoning below

9. Any Other Facts Supporting Other Than Full & Open Competition

N/A

History

Created By	Kelly Brieve	Work Function	Planner	Created Date	05/31/2023
					31-MAY-23

I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

Requirements Cognizance Signature	Kelly Brieve	Work Function	Planner	Requirements Cognizance Signature Date	06/01/2023
					

I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

Technical Cognizance Signature	Andrew Baker	Work Function	Reprocurement Technician	Technical Cognizance Signature Date	07/24/2023
					

I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

Source Validation Cognizance Signature	Johnny Brown	Work Function	Equipment Specialist	Source Validation Cognizance Signature Date	07/25/2023
					

I certify that this J&A is accurate and complete to the best of my knowledge and belief

Contracting Officer Certification Signature	Ashley Vandiver	Work Function	Contract Specialist	Contracting Officer Certification Signature Date	07/26/2023
					

I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

Competition Advocacy Review And Concurrence Signature	Thomas Dimarcantonio	Work Function	Competition Advocate	Competition Advocacy Review And Concurrence Signature Date	08/29/2023
					

I certify that this J&A is legally sufficient to the best of my knowledge and belief

Legal Sufficiency Review Signature	Kevin Malloy	Work Function	Attorney	Legal Sufficiency Review Signature Date	08/31/2023
					

I certify that this J&A is accurate and complete to the best of my knowledge and belief

Approval Required
By Far 6.304
Signature

John Sweeney
[Redacted Signature]

Work Function

Competition
Advocate

Approval Required
By Far 6.304
Signature Date

09/02/2023